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US District Court Electronic Case Filing System
District of Utah (Central)
CIVIL DOCKET FOR CASE #: 2:20-cv-00817-TC

Boldt et al v. American Fork City et al
Assigned to: Judge Tena Campbell
Demand: \$60,000
Cause: 42:1983 Civil Rights Act

Date Filed: 11/19/2020
Date Terminated: 04/24/2023
Jury Demand: Plaintiff
Nature of Suit: 440 Civil Rights: Other
Jurisdiction: Federal Question

Plaintiff

Nancy Boldt
an individual

represented by **Benjamin Tim Welch**
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TERMINATED: 06/13/2022
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ATTORNEY TO BE NOTICED

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Plaintiff

Canary Garden

a domestic nonprofit corporation

represented by **Benjamin Tim Welch**
(See above for address)
TERMINATED: 06/13/2022
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Annika L. Jones
(See above for address)
TERMINATED: 06/13/2022
ATTORNEY TO BE NOTICED

Douglas Farr
(See above for address)
TERMINATED: 01/14/2022
ATTORNEY TO BE NOTICED

Jacob D Barney
(See above for address)
ATTORNEY TO BE NOTICED

V.

Defendant

American Fork City

a political subdivision of the state of Utah

represented by **Michael L. Ford**
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ATTORNEY TO BE NOTICED

Defendant**American Fork Police Department***a subdivision of the state of Utah**TERMINATED: 12/02/2021*

represented by **Colton Alan Matheson**
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Stewart B. Harman
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LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Defendant**Jay M. Christensen**

*an officer of the American Fork Police
 Department, in both his individual and
 official capacities*

represented by **Colton Alan Matheson**
 (See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Michael L. Ford
 (See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Stewart B. Harman
 (See above for address)
LEAD ATTORNEY
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
11/19/2020	<u>1</u>	Case has been indexed and assigned to Judge Tena Campbell. Plaintiffs Nancy Boldt, Canary Garden is directed to E-File the <u>Complaint and cover sheet</u> (found under Complaints and Other Initiating Documents) and pay the filing fee of \$ 400 by the end of the business day. NOTE: The court will not have jurisdiction until the opening document is electronically filed and the filing fee paid in the CM/ECF system. Civil Summons may be issued electronically. Prepare the summons using the courts <u>PDF version</u> and email it to utdecf_clerk@utd.uscourts.gov for issuance. (jl) (Entered: 11/19/2020)

11/19/2020	2	COMPLAINT against All Defendants (Filing fee \$ 400, receipt number AUTDC-3804091) filed by Nancy Boldt, Canary Garden. (Attachments: # 1 Civil Cover Sheet Civil Cover Sheet) Assigned to Judge Tena Campbell (Farr, Douglas) (Entered: 11/19/2020)
11/20/2020	3	NOTICE of Posting of Undertaking by Nancy Boldt, Canary Garden (Farr, Douglas) (Entered: 11/20/2020)
11/25/2020	4	**RESTRICTED DOCUMENT** Summons Issued Electronically as to Jay M. Christensen. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (dw) (Entered: 11/25/2020)
11/25/2020	5	**RESTRICTED DOCUMENT** Summons Issued Electronically as to American Fork Police Department. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (dw) (Entered: 11/25/2020)
11/25/2020	6	**RESTRICTED DOCUMENT** Summons Issued Electronically as to American Fork City. Instructions to Counsel: 1. Click on the document number. 2. If you are prompted for an ECF login, enter your 'Attorney' login to CM/ECF. 3. Print the issued summons for service. (dw) (Entered: 11/25/2020)
12/07/2020	7	**RESTRICTED DOCUMENT** SUMMONS Returned Executed by Nancy Boldt, Canary Garden as to American Fork Police Department served on 12/2/2020, answer due 12/23/2020. (Jones, Annika) (Entered: 12/07/2020)
12/07/2020	8	**RESTRICTED DOCUMENT** SUMMONS Returned Executed by Nancy Boldt, Canary Garden as to American Fork City served on 12/2/2020, answer due 12/23/2020. (Jones, Annika) (Entered: 12/07/2020)
12/16/2020	9	**RESTRICTED DOCUMENT** SUMMONS Returned Executed by Nancy Boldt, Canary Garden as to Jay M. Christensen served on 12/14/2020, answer due 1/4/2021. (Jones, Annika) (Entered: 12/16/2020)
12/23/2020	10	MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM and Memorandum in Support filed by Defendants American Fork City, American Fork Police Department, Jay M. Christensen. Attorney Michael L. Ford added to party American Fork City(pty:dft), Attorney Michael L. Ford added to party American Fork Police Department(pty:dft), Attorney Michael L. Ford added to party Jay M. Christensen(pty:dft)(Ford, Michael) (Entered: 12/23/2020)
12/30/2020	11	ORDER TO PROPOSE SCHEDULE - Plaintiff must propose a schedule to defendant in the form of a draft Attorney Planning Meeting Report within the earlier of fourteen (14) days after any defendant has appeared or twenty-eight (28) days after any defendant has been served with the complaint. See order for additional instructions. Signed by Judge Tena Campbell on 12/30/20 (alt) (Entered: 12/30/2020)
01/05/2021	12	Stipulated MOTION for Extension of Time to Respond to Motion to Dismiss filed by Plaintiffs Nancy Boldt, Canary Garden. (Attachments: # 1 Text of Proposed Order Granting Stipulated Motion for Extension of Time to Respond to Motion to Dismiss) (Jones, Annika) (Entered: 01/05/2021)

01/05/2021	13	ORDER granting 12 Motion for Extension of Time. Signed by Judge Tena Campbell on 1/5/21 (alt) (Entered: 01/05/2021)
01/19/2021	14	MOTION for Initial Scheduling Conference filed by Plaintiffs Nancy Boldt, Canary Garden. (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Jones, Annika) (Entered: 01/19/2021)
01/19/2021	15	MEMORANDUM in Opposition re 14 MOTION for Initial Scheduling Conference filed by Defendants American Fork City, American Fork Police Department, Jay M. Christensen. (Ford, Michael) (Entered: 01/19/2021)
01/19/2021	16	DOCKET TEXT ORDER REFERRING CASE to Magistrate Judge Daphne A. Oberg under 28:636 (b)(1)(A), Magistrate to hear and determine all nondispositive pretrial matters. Motion referred to Daphne A. Oberg. So ordered by Judge Tena Campbell on 1/19/21 (docket text only - no attached document) (alt) (Entered: 01/19/2021)
01/20/2021	17	ORDER denying 14 Motion for Initial Scheduling Conference. Deadlines set forth in the 11 Order to Propose Schedule are stayed pending ruling on 10 Motion to Dismiss. Signed by Magistrate Judge Daphne A. Oberg on 1/20/21 (alt) (Entered: 01/20/2021)
01/29/2021	18	NOTICE of Appearance by Stewart B. Harman on behalf of American Fork Police Department, Jay M. Christensen (Harman, Stewart) (Entered: 01/29/2021)
01/29/2021	19	NOTICE of Appearance by Colton Alan Matheson on behalf of American Fork Police Department, Jay M. Christensen (Matheson, Colton) (Entered: 01/29/2021)
02/03/2021	20	Plaintiff's MEMORANDUM in Opposition re 10 MOTION to Dismiss for Failure to State a Claim filed by Plaintiffs Nancy Boldt, Canary Garden. (Jones, Annika) (Entered: 02/03/2021)
02/08/2021	21	<u>NOTICE OF ZOOM HEARING ON MOTION</u> re: 10 MOTION to Dismiss for Failure to State a Claim : (Notice generated by Chris Ford) Motion Hearing set for 3/15/2021 at 11:00 AM in Judges Chambers before Judge Tena Campbell. (cff) (Entered: 02/08/2021)
02/08/2021	22	<u>CORRECTED NOTICE OF ZOOM HEARING ON MOTION</u> re: 10 MOTION to Dismiss for Failure to State a Claim : (Notice generated by Chris Ford) Motion Hearing set for 3/18/2021 at 11:00 AM in Judges Chambers before Judge Tena Campbell. PLEASE NOTE DATE CHANGE ONLY. (cff) (Entered: 02/08/2021)
02/08/2021	23	NOTICE of Appearance by Robert L. Janicki on behalf of American Fork City (Janicki, Robert) (Entered: 02/08/2021)
02/17/2021	24	REPLY to Response to Motion re 10 MOTION to Dismiss for Failure to State a Claim filed by Defendant American Fork City. (Ford, Michael) (Entered: 02/17/2021)
02/24/2021	25	<u>AMENDED NOTICE OF ZOOM HEARING ON MOTION</u> re: 10 MOTION to Dismiss for Failure to State a Claim : (Notice generated by Chris Ford) Motion Hearing RESET for 3/30/2021 at 11:00 AM in Judges Chambers before Judge Tena Campbell. (cff) (Entered: 02/24/2021)
03/30/2021	26	Minute Entry for proceedings held before Judge Tena Campbell: Motion Hearing held on 3/30/2021 re 10 MOTION to Dismiss for Failure to State a Claim filed by American Fork Police Department, Jay M. Christensen, and American Fork City. Counsel appear via ZOOM due to continued concerns with COVID-19. The court hears argument and takes the matter under advisement.

		Attorney for Plaintiff: Annika L. Jones. Attorneys for Defendants: Michael Ford, Stewart B. Harman. Court Reporter: Teena Green. (cff) (Entered: 03/30/2021)
12/02/2021	27	ORDER AND MEMORANDUM DECISION granting in part and denying in part 10 Motion to Dismiss for Failure to State a Claim: all claim against American Fork Police Department are dismissed; first, second, third, and fourth claims are dismissed with prejudice and sixth, seventh, eighth, ninth and eleventh claims are dismissed without prejudice (motion seeking to amend those claims may be filed by no later than 1/14/22; motion is denied as to the fifth and tenth claims. Signed by Judge Tena Campbell on 12/2/21 (alt) (Entered: 12/02/2021)
12/20/2021	28	DOCKET TEXT ORDER: The parties are ordered to comply with paragraph 2 of the 11 Order to Propose Schedule by January 5, 2022. No attached document. Signed by Magistrate Judge Daphne A. Oberg on 12/20/2021. (med) (Entered: 12/20/2021)
01/05/2022	29	REPORT OF ATTORNEY PLANNING MEETING. (Attachments: # 1 Text of Proposed Order Scheduling Order)(Jones, Annika) (Entered: 01/05/2022)
01/06/2022	30	SCHEDULING ORDER: Amended Pleadings due by 8/31/2022. Joinder of Parties due by 8/31/2022. Expert Discovery due by 3/31/2023. Motions due by 5/1/2023. Final Pretrial Conference set for 9/11/2023 at 03:00 PM in Rm 3.400 before Judge Tena Campbell. 5-Day Jury Trial set for 10/2/2023 at 08:30 AM in Rm 3.400 before Judge Tena Campbell. Signed by Magistrate Judge Daphne A. Oberg on 1/6/22 (alt) (Entered: 01/06/2022)
01/10/2022	31	Stipulated MOTION for Extension of Time to File Motion for Leave to Amend Complaint filed by Plaintiffs Nancy Boldt, Canary Garden. (Attachments: # 1 Text of Proposed Order Granting Stipulated Motion to Extend Deadline to File Motion for Leave to Amend Complaint) Motions referred to Daphne A. Oberg.(Jones, Annika) (Entered: 01/10/2022)
01/11/2022	32	DOCKET TEXT ORDER granting 31 Stipulated Motion for Extension of Time to File Motion for Leave to Amend Complaint. Plaintiffs' deadline to file a motion for leave to amend the Complaint is January 28, 2022. Defendants' response to such motion is due February 18, 2022. Signed by Magistrate Judge Daphne A. Oberg on 1/11/2022. No attached document. (med) (Entered: 01/11/2022)
01/14/2022	33	NOTICE OF WITHDRAWAL OF COUNSEL of Douglas P. Farr filed by Douglas P. Farr on behalf of Nancy Boldt, Canary Garden (Farr, Douglas) (Entered: 01/14/2022)
01/27/2022	34	Stipulated MOTION for Extension of Time to File Motion for Leave to Amend Complaint filed by Plaintiffs Nancy Boldt, Canary Garden. (Attachments: # 1 Text of Proposed Order Granting Stipulated Motion to Extend Deadline to File Motion for Leave to Amend Complaint) Motions referred to Daphne A. Oberg.(Jones, Annika) (Entered: 01/27/2022)
01/28/2022	35	DOCKET TEXT ORDER granting 34 Stipulated Motion for Extension of Time. The deadline to file a motion for leave to amend the complaint is extended to February 11, 2022. The deadline for Defendants' response to the motion shall be March 4, 2022. Signed by Magistrate Judge Daphne A. Oberg on 1/28/2022. No attached document. (med) (Entered: 01/28/2022)
02/11/2022	36	Plaintiff's MOTION for Leave to File an Amended Complaint filed by Plaintiffs Nancy Boldt, Canary Garden. (Attachments: # 1 Exhibit 1, # 2 Exhibit 2) Motions referred to Daphne A. Oberg.(Jones, Annika) (Entered: 02/11/2022)

03/04/2022	37	NOTICE of Non-Opposition to Plaintiffs' Motion for Leave to Amend Complaint by American Fork City re 36 Plaintiff's MOTION for Leave to File an Amended Complaint (Ford, Michael) (Entered: 03/04/2022)
03/07/2022	38	ORDER granting 36 Motion for Leave to File Amended Complaint. Signed by Magistrate Judge Daphne A. Oberg on 3/7/22 (alt) (Entered: 03/07/2022)
03/14/2022	39	AMENDED COMPLAINT against American Fork City, Jay M. Christensen. filed by Nancy Boldt, Canary Garden. (Jones, Annika) (Entered: 03/14/2022)
03/25/2022	40	ANSWER to 39 Amended Complaint with Jury Demand filed by American Fork City. (Ford, Michael) Modified on 5/31/2022: removed repetitive text (alt) (Entered: 03/25/2022)
03/26/2022	41	ANSWER to 39 Amended Complaint <i>and Reliance on Jury Demand</i> filed by Jay M. Christensen.(Harman, Stewart) (Entered: 03/26/2022)
06/13/2022	42	SUBSTITUTION OF COUNSEL Douglas Farr replacing Annika L. Jones and Benjamin Tim Welch as counsel on behalf of Nancy Boldt, Canary Garden. (Farr, Douglas) (Entered: 06/13/2022)
10/05/2022	43	MOTION for Amended Scheduling Order filed by Plaintiffs Nancy Boldt, Canary Garden. (Attachments: # 1 Exhibit Proposed Amended Scheduling Order) Motions referred to Daphne A. Oberg. Attorney Jacob D Barney added to party Nancy Boldt(pty:pla), Attorney Jacob D Barney added to party Canary Garden(pty:pla)(Barney, Jacob) (Entered: 10/05/2022)
10/12/2022	44	FIRST AMENDED SCHEDULING ORDER granting 43 Motion for Amended Scheduling Order. Expert Discovery due by 5/1/2023. Motions due by 5/31/2023. Final Pretrial Conference set for 10/10/2023 at 03:00 PM in Rm 3.400 before Judge Tena Campbell. 5-Day Jury Trial set for 10/30/2023 at 08:30 AM in Rm 3.400 before Judge Tena Campbell. Signed by Magistrate Judge Daphne A. Oberg on 10/11/22 (alt) (Entered: 10/12/2022)
10/18/2022	45	NOTICE of Appearance by Thomas Alldridge on behalf of American Fork City (Alldridge, Thomas) (Entered: 10/18/2022)
10/28/2022	46	NOTICE of Amended Notice of 30(b)(6) Deposition of American Fork City by Nancy Boldt, Canary Garden (Barney, Jacob) (Entered: 10/28/2022)
10/28/2022	47	NOTICE of Deposition of Jay Christensen by Nancy Boldt, Canary Garden (Barney, Jacob) (Entered: 10/28/2022)
04/20/2023	48	Stipulated MOTION to Dismiss filed by Plaintiffs Nancy Boldt, Canary Garden. (Attachments: # 1 Text of Proposed Order Order Granting Stipulated Motion for Dismissal of Case)(Barney, Jacob) (Entered: 04/20/2023)
04/24/2023	49	ORDER granting 48 Stipulated Motion to Dismiss With Prejudice - CASE CLOSED. Magistrate Judge Daphne A. Oberg no longer assigned to case. Signed by Judge Tena Campbell on 4/24/23 (alt) (Entered: 04/24/2023)